

	2025-01522372	Defendant SC Wings Buena Park, LLC's ("Defendant") Petition for Order Staying Action and Requiring Plaintiff Charles Shon Dobbs ("Plaintiff") to Arbitrate the Controversy is granted. Defendant petitions for an order compelling arbitration and staying the action pending resolution of the arbitration. (ROA 14.) Defendant contends Plaintiff signed a written "Arbitration of Disputes Agreement" when he completed his "onboarding" documents. <u>The FAA and CAA</u> The FAA applies to any dispute concerning an arbitration provision in a contract "evidencing a transaction involving commerce." (9 U.S.C. § 2.) This phrase is construed broadly and may apply to disputes between residents of the same state and in-state transactions that "affect" interstate commerce. (<i>Khalatian v. Prime Time Shuttle, Inc.</i> (2015) 237 Cal.App.4th 651.) "The 'principal purpose' of the FAA is to 'ensur[e] that private arbitration agreements are enforced according to their terms.'" (<i>Lacayo v. Catalina Restaurant Group Inc.</i> (2019) 38 Cal.App.5th 244, 257, citing <i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 344, 131 S.Ct. 1740.) "California law, like federal law, favors enforcement of valid arbitration agreements." (<i>Baxter v. Genworth North America Corp.</i> (2017) 16 Cal.App.5th 713, 721, citation omitted.) Arbitrations provisions are to be interpreted broadly and "should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (<i>EFund Capital Partners v. Pless</i> (2007) 150 Cal.App.4th 1311, 1321, citations omitted.) "Whether an agreement to arbitrate exists is a threshold issue of contract formation and state contract law." (<i>Avila v. Southern California Specialty Care, Inc.</i> (2018) 20 Cal.App.5th 835, 843-844.) The party seeking to compel arbitration has the initial burden of "proving the existence of a valid agreement to arbitrate." If that burden is satisfied, "the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (<i>Avery v. Integrated Healthcare Holdings, Inc.</i> (2013) 218 Cal. App. 4th 50, 59, citations omitted.) <u>Existence of an Agreement to Arbitrate</u> A petition to compel arbitration must "alleg[e] the existence of a written agreement to arbitrate a controversy." (Code Civ. Proc., § 1281.2.) California Rules of Court, rule 3.1330, which governs arbitration motions, states: "in addition to other required allegations, the provisions of the written agreement and the paragraph that
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provides for arbitration” must be stated in the petition, either “verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. R. Ct. Rule 3.1330.)

A writing must be authenticated “before it may be received in evidence.” (Evid. Code, § 1401.) However, it is well-settled that, in the context of petitions to compel arbitration, “ ‘it is not necessary to follow the normal procedures of document authentication.’ ” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058, quoting *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) Rather, the petitioning party “may meet [its] initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature,” which will be deemed “in compliance with the requirements of section 1281.2 and California Rules of Court, rule 3.1330.” (*Id.* at p. 1060 [emphasis in original].)

Here, Defendant has met its initial burden by attaching the arbitration agreement to the supporting declaration from its in-house counsel, Anthony Klish. (See ROA 15 [Klish Decl. at ¶ 8, Exh. A].) Mr. Klish explains that the arbitration agreement is one of the “onboarding forms” that is given to employees at orientation, and that the forms are provided through “DocuSign” and “the hiring program commonly known as ‘Hire Me.’” (Klish Decl. at ¶ 4.) Mr. Klish further explains that the recipient must provide a “base signature,” which is applied to the document where the employee wishes to place his or her signature. (Klish Decl. at ¶¶ 4-6.) Mr. Klish attests that he is the “only person in the organization that had control of the documents that also knew of the Plaintiff’s purported claims”; and, that he “did not retroactively forge Plaintiff’s signature on the Onboarding Forms...” (Klish Decl. at ¶ 9.)

The arbitration agreement states, in relevant part, that, “any and all claims, disputes or controversies between employees and [Defendant] shall be resolved by binding arbitration pursuant to the provisions of this policy, except as otherwise specifically prohibited by law.” This includes, but is not limited to, “those arising out of or related to an employee’s hiring, employment, the terms and conditions of that employment, and the termination of employment...” “Any such Claim shall be settled by arbitration, in Los Angeles, California, to be administered by Action Dispute Resolution Services (‘ADR Services’), in accordance with and pursuant to its Arbitration Rules (‘Rules’) then in effect...” Defendant “shall pay all arbitration forum fees, with the exception of that portion of the arbitration filing fee which is equivalent to the amount of the filing fee that would be

required if Claims were filed by the employee as a lawsuit in a court of law.”

In opposing the motion, Plaintiff has not challenged the authenticity of the arbitration agreement or that it would apply to all his claims. Rather, Plaintiff objects to Mr. Klish’s testimony on the grounds that it lacks foundation, because Mr. Klish does not have personal knowledge of Plaintiff (i.e., that Mr. Klish did not witness Plaintiff’s execution of the arbitration agreement). (See ROA 39.) Plaintiff’s objections are overruled. As explained, above, the “normal procedures of document authentication” do not apply to arbitration petitions. Rather, Defendant’s *initial* burden was to proffer a copy of the arbitration agreement that purportedly bears Plaintiff’s signature. Thereafter, *if* Plaintiff challenges the authenticity of his signature, then Defendant has “the burden of proving by a preponderance of the evidence that the electronic signature was authentic.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; see also *Espejo*, supra, 246 Cal.App.4th at 1059 [noting that, although *Ruiz* “reached the opposite conclusion regarding the sufficiency of the defendant’s showing, it applied the same principles” regarding the petitioner’s burden as stated in *Condee*].)

Plaintiff’s reliance on *Ruiz* is misplaced, because he has not challenged the authenticity of his electronic signature on the arbitration agreement. Notably, Plaintiff’s only argument is: “The Declaration of Mr. Klish fails to establish any foundation to authenticate the purported arbitration agreement.” (Opp’n at p. 3.) Plaintiff does not deny that he signed the arbitration agreement, much less proffer a competing declaration that the signature is not authentic. Accordingly, under both *Condee* and *Ruiz*, Defendant has already met its initial burden and is not required to take further steps to authenticate the agreement.

Step 2: Defense To Enforcement

The burden shifts to Defendant to show there is a defense to enforcement of the arbitration agreement. Plaintiff contends, “Defendant’s own statements contradict its own desire to arbitrate this matter,” because Defendant has purportedly made “contradictory statements” by filing out case managements that request a jury trial and discovery. (Opp’n at p. 4.) This argument is not persuasive.

“To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562,

		584.) “Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it.” (<i>Ibid.</i>) Here, there is no evidence that Defendant waived its right to arbitration. Defendant not only reserved the right to compel arbitration, but it already exercised that right. Plaintiff fails to cite any authority showing that the submission of case management statement (which a party is required to file under the Rules of Court) results in “waiver” merely because the participant has selected “a jury trial” over a “nonjury trial” under section 5. Section 5 presumes that the court will hold a case management conference and set the matter for a jury or non-jury (bench) trial. However, when the arbitration petition is granted, this case is stayed and the court does <i>not</i> proceed with the case management conference. Plaintiff has not raised any other arguments regarding the enforceability of the agreement. The Court finds Plaintiff has not met his burden of showing there is a defense to enforcement. The motion to compel arbitration is granted. Plaintiff is ordered to arbitrate all of his claims. The action is stayed pending final resolution of the arbitration. (Code Civ. Proc. § 1281.4.) The Case Management Conference is vacated. The Court sets an arbitration status conference for 12-4-26 at 9:00 a.m. in Department C11. Defendant shall give notice of the ruling. Case Management Conference – off calendar
5	Dyer Industrial, LLC vs. Impact Advertising, Inc. 2022-01291920	Motion for Entry of Judgment Withdrawn
6	Freeman vs. Espinoza 2025-01511842	Motion for Partition of Real Property by Sale and Appoint a Partition Referee